

DEPARTMENT OF VETERANS AFFAIRS

**FAR 8 – Justification for Limiting Sources (LSJ)
For
Limiting Sources (<SAT)**

Acquisition Plan Action ID: 36C242-25-AP-2493

- 1. Contracting Activity:** Department of Veterans Affairs, VISN 2 , VA Western New York Healthcare System (VHAWNYHS), 3495 Bailey Avenue, Buffalo, New York 14215. 528-25-2-4085-0078
- 2. Description of Action:** The Department of Veterans Affairs, Network Contracting Office 2 and the VHAWNYHS anticipates a new, limited source (Dentsply Sirona) firm fixed procurement action for the Buffalo VAMC Dental Department of (8) Heliodent XL Dental x-rays.
- 3.**
Order against: ☒ FSS Contract Number: 36F79718D0334

Name of Proposed Contractor: Dentsply Sirona
Street Address: 30-30-47th Ave. Suite 500
City, State, Zip: Long Island City, NY 11101
Phone: 718-937-5765
- 4. Description of Supplies or Services:** The VA Medical Center is working to replace the current dental x-rays that have exceeded their useful life date. These units were originally installed in 2007 and reached their replacement date in 2017. Dental X-rays are used frequently in our facility in order to help diagnose issues such as tooth decay, bone loss, impacted teeth, or other conditions affecting the teeth or jaw. Downtime of these units can results in delayed Veteran care.

The estimated value of the proposed action is \$29,084.64

SBA Database searched for NAICS code 339114 and keyword “Dentsply” which yielded 0 results. SBA also searched for NAICS code 339114 and keyword “Heliodent” which also yielded no results.

NAC was searched for item 6256221 and Dentsply was the only seller of the required product.

GSA was searched for items 6256221 and 6242254 and Dentsply is the only provider of the product on GSA contract number 36F79718D0334.

Vetcert was searched for NAICS code 339114 which yielded 239 total results in that category but the search on SBA with the same NAICS code and keywords Dentsply and Heliodent with no results suggest that there are now SDVOSB's capable of providing the required items. Vetcert all searched for Dentsply which is not an SDVOSB

FPDS was searched for Heliodent dental and all but two of the results were by Dentsply Sirona which suggests they are the only one who can sell there products and the other two are most likely resellers without permission to sell them.

5. Authority:

Order Against FSS: Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 USC 251, et seq.); Title 40 USC 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception:

☐ **An urgent and compelling need exists**, and following the procedures would result in unacceptable delays([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));

☐ **Only one source** is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#));

☐ In the interest of economy and efficiency, the new work is **a logical follow-on** to an original Federal Supply Schedule order and the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. **The original order was not previously issued under sole-source or limited-sources procedures** ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or

☒ **Items peculiar to one manufacturer.** An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer ([FAR 8.405-6\(b\)](#)).

6. Rationale/explanation to support cited authority: The current cabinets that are installed in the dental offices are heliodent and they can only house heliodent xray machines, going with another brand would not be in the best interests of the government from a financial standpoint as well as a timeliness standpoint to continue timely care for veterans.

Attachment 1: Justification for Limiting Sources for Micro-Purchase Threshold up to the SAT

7. Note that this determination satisfies the requirements of [FAR 8.405-6](#). The requirement to prepare a written justification [IAW FAR 6.303](#) does not apply to Federal Supply Schedules.

Corey Swinton
Contracting Officer
Albany/NCO 2
Date: 4/21/2025